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Request for Information: Development of an Artificial Intelligence Action Plan

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General Comment

Per the requirements of the RFI response I am stating the following:

This document is approved for public dissemination. The document contains no business-proprietary or confidential information.

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I have deep and abiding concerns over the executive order and subsequent directives regarding the Development of an Artificial Intelligence Action Plan.

Section 2 of the executive order, "Removing Barriers to American Leadership in Artificial Intelligence," stipulates the following: "It is the policy of the United States to sustain and enhance America's global AI dominance in order to promote human flourishing, economic competitiveness, and national security." However, the deployment I've seen of current AI technologies, particularly what's known as "generative artificial intelligence" (alternatively, "generative AI") seems antithetical to promoting "human flourishing" in any form.

The "training" of generative AI models requires the massed scraping and analysis of human-created works, particularly writing and visual art. To date, AI companies have point-blank refused to pay anyone who wrote anything that was used for AI training, instead trying to defend their massed theft as "fair use."

Generative AI systems have also required huge expenditures of energy and water, imposing new strains on American electrical grids and water systems. Further, the highest-profile attempts to deploy generative AI at scale have posed a direct threat to human employment, denying people the ability to earn a living on their own terms.

AI developers must be required to ask permission to include people's work in the development of their models. Creators should not have to opt out; they should be invited to opt in, with suitable compensation.

Automated data collection (also known as scraping) must be required to respect requests to not collect data from websites that post such requests.

Any data collected by any AI developer must be anonymized and encrypted while stored, to protect the creators' privacy.

AI developers should be charged a surcharge for the electricity and cooling water consumed, along with a charge for the added pollution from the electricity generation. They should be required to follow all environmental requirements for construction and operation of data centers.

Last but not least, AI models should be treated as potential dual-use technologies and subject to export control (EC) laws and international traffic in arms regulations (ITAR) and thus, review by the Department of Commerce and Department of Defense.

While I remain an AI skeptic, I acknowledge that artificial intelligence may reach a point where it can indeed be used for the betterment of humanity. In the present, though, I hold that AI must be developed in forms which respects and upholds the dignity of humans in all walks of life, and that where AI development would run counter to the well-being of any human, human rights and dignity must be given priority over corporate interests.